

26IWUD01097 26IWUD01097

County: los-angeles

Division: Civil Law and Motion

Department: 8

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In considering a demurrer, the court accepts the truth of material facts properly pleaded in the operative complaint, but not contentions, deductions, or conclusions of fact or law. (Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924.) The court may also consider matters subject to judicial notice. (Ibid.)

The complaint states a cause of action for unlawful detainer based upon nonpayment of rent, as the three-day notice to pay or quit appears on its face to comply with Code of Civil Procedure § 1161(2). The Defendant argues the notice is defective because the parties entered into an agreement regarding payment of the unpaid rent identified in the notice. That argument cannot be resolved via this demurrer, as it relies on facts beyond the face of the complaint of which the court cannot take judicial notice. (See County of Santa Clara v. Superior Court (2023) 14 Cal.5th 1034, 1041.)

The Defendant also argues the complaint is defective because it fails to state the amount of overdue rent. The past due rent is alleged at paragraph 20(c) and identified in the three-day notice attached to the complaint.

The demurrer is overruled. The Defendant is ordered to file an answer only within five days' notice of this ruling.